

THE PUNJAB SPECIAL PROTECTION UNIT ACT 2016
(II of 2016)

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TEXT

THE PUNJAB SPECIAL PROTECTION UNIT ACT 2016

(II of 2016)

[6th February, 2016]

An

Act

to provide for the constitution of Special Protection Unit in the Police.

It is necessary to make provisions for the constitution of Special Protection Unit in the Police for purposes of providing dedicated security to the foreigners, important persons and premises; and, for other purposes.

Be it enacted by Provincial Assembly of the Punjab as follows:–

1. Short title, extent and commencement.– (1) This Act may be cited as the Punjab Special Protection Unit Act 2016.

(2) It extends to whole of the Punjab.

(3) It shall come into force at once.

2. Definitions.– (1) In this Act:

(a) “Director” means the Director of the Unit;

(b) “Government” means Government of the Punjab;

(c) “member” means a member of the Unit;

(d) “Police” means the Police constituted under the Police Order, 2002 (C.E. Order No. 22 of 2002);

(e) “prescribed” means prescribed by the rules made under the Act;

(f) “rules” mean rules made under the Act; and

(g) “Unit” means Special Protection Unit in the police constituted under the Act.

(2) An expression used in the Act but not defined shall have the same meanings as are assigned to it under the Police Order, 2002 (C.E. Order No. 22 of 2002).

3. Special Protection Unit.– (1) The Government shall, by notification in the official Gazette, constitute the Unit to be known as Special Protection Unit consisting of such number of regions and such number of members as the Government, on the recommendations of the Provincial Police Officer, may determine.

(2) The Unit shall consist of the following ranks:

(a) Director who shall be a Deputy Inspector General of Police;

(b) Additional Director who shall be a Senior Superintendent of Police;

(c) Deputy Director who shall be a Superintendent of Police;

(d) Assistant Director who shall be a Deputy Superintendent of Police;

- (e) Chief Security Officer;
- (f) Senior Security Officer;
- (g) Security Officer;
- (h) Senior Security Constable; and
- (i) Security Constable.

(3) The administration of the Unit shall vest in the Director, who shall discharge his functions under the supervision and control of the Provincial Police Officer.

4. Terms and conditions.— (1) Subject to this Act, the terms and conditions of the service and other matters relating to service of the members shall be regulated under this Act and the rules.

(2) A person initially recruited in the Unit shall serve in the unit and shall, in no case, be transferred to the general executive branch or any other cadre or branch of the Police.

5. Functions of the Unit.— (1) The Unit shall ensure protection of foreigners, important persons and premises as may be notified by the Provincial Police Officer.

(2) Subject to section 6, the Provincial Police Officer may, by general or special order, extend the services of the Unit to a private or public sector organization on such payment and in such manner as may be prescribed.

6. Fee for services.— (1) Subject to any special or general directions of the Government, the Provincial Police Officer may extend the services of the Unit to a private organization or to a public sector organization on such payment, in such manner and on such conditions as may be prescribed.

(2) The person or organization utilizing services of the Unit shall bear the cost incurred by the Unit on the provision of infrastructure, machinery, equipment and other related works necessary for the protection of the persons or premises.

(3) The payment shall be made by or before the date prescribed and in case of failure to do so, the Provincial Police Officer, after recording reasons, may:

- (a) allow further time for payment;
- (b) decide to withdraw the security after affording an opportunity of hearing to the concerned person or organization; or
- (c) recover the outstanding amount as arrears of land revenue in accordance with law for the time being in force.

(4) All amounts received under this Act shall be credited to the Government treasury.

(5) The Government may, for reasons to be recorded and by notification in the official Gazette, exempt payment of fee for services rendered by the Unit to a class of persons or organizations.

7. Appointments.— (1) All appointments under the Act shall be made in the manner or by the authority as may be prescribed.

(2) Subject to subsection (2), initial recruitment of members in the rank of Security Constable shall be made from amongst persons who fulfill the prescribed qualifications, who are not less than eighteen years or more than twenty two years of age on the closing date of the receipt of applications and who fulfill such other conditions of eligibility as may be prescribed and until so prescribed as are applicable to a constable of the Police.

(3) The matters relating to recruitment of specialist and ministerial cadres of the Unit and promotion of the members shall be governed in such manner as may be prescribed.

8. Efficiency, discipline and conduct.— The matters relating to efficiency, discipline and conduct of the members shall be regulated under the law or rules for the time being in force and applicable to the Police.

9. Leave.— The Revised Leave Rules, 1981 shall apply to the members.

10. Age of superannuation.— (1) A member shall stand retired on attaining the age mentioned against each rank in column 3 of the Table below:

Sr #	Rank	Age of superannuation
1.	Chief Security Officer	50
2.	Senior Security Officer	48
3.	Security Officer	46
4.	Senior Security Constable	44
5.	Security Constable.	42

(2) The age of superannuation shall be determined on the basis of substantive rank of a member and service as 'acting charge', 'officiating promotion' and 'additional charge' shall not be considered for the purpose.

11. Pay and allowances.— The members shall draw such pay and allowances as may be prescribed and until prescribed as the Government may determine.

12. Rules.— The Provincial Police Officer, with prior approval of the Government may, by notification, make rules for carrying out the purposes of this Act.

13 Transition.— Notwithstanding anything contained in the Act and for immediate operationalization of the Unit, appointments in the Unit may be made in any rank by:

- (a) initial recruitment on contract for a specified period from amongst ex-armed personnel; or
- (b) posting of a police officer of the corresponding rank.

14. Repeal.— The Punjab Special Protection Unit Ordinance, 2015 (XXIII of 2015) is hereby repealed.